

**Environmental Protection Guidelines for Contractors on Facilities Projects
at Pearl Harbor Naval Shipyard & Intermediate Maintenance Facility
Revised October 16, 2019**

1. Environmental Compliance. Environmental protection is an important part of the way the Navy accomplishes its mission. Federal facilities are required by Executive Order to be leaders in the environmental field. The Pearl Harbor Naval Shipyard & Intermediate Maintenance Facility (PHNSY&IMF) has established policies, programs and instructions to prevent damage to the environment; comply with environmental laws and regulations; and protect the health and safety of personnel. All Navy personnel and Contractors need to consider the impacts of their actions on the air, land and water.
2. Regulations. Contractors must comply with all Federal, State of Hawaii (aka State) and local environmental rules and regulations, including, but not limited to Title 40 of the Code of Federal Regulations (CFR), 49 CFR, 29 CFR, Hawaii Administrative Rules (HAR), PHNSY&IMF Environmental Management System (EMS), National Pollutant Discharge Elimination System (NPDES) Permits HI 0110230, HI 1120801, HI 0110086, HI R20A427, HI 06KC635, Covered Source Permit 0105b-01-C, Mixed Waste Storage Permit HI 6170024339 and the latest versions of NAVSHIPYD&IMFPEARLINST 5090.1, 5090.4, 5090.5, 5090.6, 5090.8, 5090.9, 5090.11, 5090.12, 5090.15, 5090.16, 5090.17, 5090.18, and 5090.20.
3. PHNSY&IMF (Code 106) Points of Contact (POC). All environmental matters and assistance must be directed to the PHNSY&IMF Environment Division (Code 106.3).

Director, OSHE Office:	106	(808) 473-8000 ext 4459
Environment Division	106.3	(808) 474-9080
Solid & Hazardous Waste Branch	106.31	(808) 473-8000 ext 4580
Environmental Compliance Branch	106.32	(808) 473-8000 ext 2231
Waterfront Branch	106.33	(808) 473-8000 ext 4301
4. Regulatory Interface. PHNSY&IMF Environment Division (Code 106.3) will be the POC for interaction with regulatory agencies and will coordinate interface and inspections with the required parties. The Government Contracting Officer or Representative (COR) and Code 106.3 will be notified of any regulatory inspections, meetings, inquiries, issues or requests for information specific to the operations being conducted by its Contractors. Contractors must immediately investigate all practices cited in Notices of Violations (NOVs), Notices of Noncompliance (NONs) or enforcement actions, and take immediate actions to remedy infractions to return to compliance. Contractors must provide to Code 106.3 a written response within 3 calendar days of completing the investigation, identifying the alleged violation, period of non-compliance, investigation results, reasons for a response, remedial actions taken and preventative actions to prevent a recurrence. Contractors must not enter into any agreement with a regulatory agency without notifying and obtaining concurrence from the Navy. Contractors must reimburse the Navy for any monetary fines and penalties assessed against the Navy as a result of non-compliant actions within 3 calendar days.
5. Contractor Environmental Manager (EM) Responsibilities and Qualifications. The EM is responsible for ensuring all parties, including subcontractors, under Contract are in compliance with Federal, State, local and PHNSY&IMF requirements.
 - a. Qualifications. The Contractor (Prime and Subcontractor) must submit a letter, signed by an officer of the company, appointing the EM and alternate(s). The letter must state the named person(s) is responsible for managing and implementing the Contractor's Environmental Program and has met the minimum environmental qualifications and training at time of the proposal.

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b. The EM and alternate(s) must have a minimum qualification of 5 years of environmental experience and current training. EM training records must be submitted to the Government COR after award of contract but before start of work. Alternate Shift EM must have the same qualifications and responsibilities as the appointed EM on these environmental topics:

- (1) Resource Conservation Recovery Act (RCRA) management of hazardous waste (40 CFR)
- (2) Hazardous Waste Operations and Emergency Response (HAZWOPER) (40 CFR and HAR)
- (3) Department of Transportation Hazardous Material (49 CFR)
- (4) HAR, Clean Water Act, and Clean Air Act.

c. The EM and alternate(s) must have 5 years of experience to adequately accomplish their duties which include, but are not limited to (as applicable to the contracted scope of work):

(1) Compliance with all applicable Federal, State of Hawaii and local environmental requirements including:

- (a) Clean Water Act (NPDES Permits).
- (b) Hazardous Materials.
- (c) Solid & Hazardous Waste Management.
- (d) Spill Prevention Control and Countermeasures (SPCC), oil and hazardous substance (OHS) spill prevention and response.
- (e) Clean Air Act, National Emission Standards for Hazardous Air Pollutants (NESHAP) and Ozone Depleting Substances (ODS).
- (f) Toxic Substances Control Act (TSCA) for Polychlorinated Biphenyls (PCBs) and asbestos.

(2) Waste Management:

(a) Performing upfront characterization of waste prior to generation to ensure proper management, accumulation, handling and labeling while under the control of the Contractor.

(b) Waste segregation and storage compatibility requirements.

(c) Inspecting and managing waste accumulation areas.

(d) Ensuring only authorized personnel add wastes to containers.

(e) Ensuring personnel and subcontractor(s) are trained to obtain representative sample(s), including utilization of proper sampling device(s) for specific sampling points, applying proper sampling techniques when collecting samples, and storage and transportation requirements.

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(3) Training:

- (a) Ensuring personnel and subcontractor(s) are trained per their position requirements.
 - (b) Submitting training records to the Government COR within 45 days of contract award.
 - d. The EM or alternate(s) must be on-site during work operations at all times.
 - e. The EM or alternate is responsible for reviewing and approving, in writing, all environmental documents submitted to the Government (e.g., turn in documents, plans, profile sheets, etc.).
 - f. Environmental Records Binder. Contractor must maintain an Environmental Record Binder which includes training or qualification records, Environmental Protection Plan (EPP), and documented environmental surveillances. An EPP is not required if work is administrative in nature such as visual inspections, software installation, gauge reading, etc.
6. Environmental Compliance Assessment, Training and Tracking System (ECATTS). The Prime Contractor's Project Manager and EM (including alternate) must complete ECATTS before start of work.
- a. Log into <http://www.ecatts.com>.
 - b. Select "America's Navy" icon located under "ECATTS Training."
 - c. Create an account by typing "navfac" as the registration password in the "NEW USERS – Register Here."
 - d. Fill out the Account Registration Form.
 - e. Select type of Contractor in the "Training Type" blank.
 - f. Select "Hawaii" as the Primary State where you will be working.
 - g. In the "Training Selection" section, select all applicable training modules (e.g., Environmental Management, Fuels Storage & Management)
 - h. Once you receive account confirmation, log in and select "All Available Environmental Training."
 - i. Select appropriate training, e.g., Naval Facilities (NAVFAC) Construction Contractor (Prime), NAVFAC Construction Subcontractor (Plumbing), etc.
 - j. Complete all applicable training modules listed under appropriate job title.
 - k. Print the Certificate of Accomplishment and submit to the Government COR and Code 106.3 prior to the start of work.

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7. Contractor Environmental Brief. All Contractor personnel must attend a Contractor Environmental Brief presented by Code 106.3 prior to the start of work. The Government Representative, (e.g., COR) must be present. At the briefing, the Contractor must submit a completed Environmental Checklist.

8. Plan Submittals. Contractors must submit an environmental protection plan to Code 106.3 via the Government COR for review at least within 45 days following contract award. Contractors must revise the plan throughout the project to incorporate changes in site condition or scope of work that could have an environmental impact and maintain the current versions onsite. No requirement in this section will relieve the Contractor of any applicable federal, state, and local environmental protection laws and regulations. The environmental protection plan must address paragraphs (a) through (k) of this section.

a. General Information.

(1) Contractor designation letter for the EM and alternate(s).

(2) Present an overview of known or potential environmental issues that must be considered or addressed during the work such as, but not limited to, contaminated sites, waste generation, waste accumulation areas, project specific procedures (e.g., painting, oil transfers, etc.), abatement of hazardous materials, etc.

(3) POC list to include names, position titles, contact and emergency contact information, regular shift hours, duties and levels of authority assigned to personnel on the job site who oversee environmental compliance, and training and certifications of environmental personnel.

(4) Plan drawings showing the proposed activity and identify the areas of limited use or nonuse. Include measures for marking the limits of use areas, including methods for protection of features to be preserved within authorized work areas and methods to control runoff and to contain materials on site, and a traffic control plan.

(5) Actions to be taken in the event of inclement weather (heavy rains, high winds, hurricanes, storms, tsunamis, etc.) to prevent spills or releases to the environment.

b. Management, preservation, protection of natural resources (land resources, tree protection, fish and wildlife, historical, archeological) and mitigation measures.

c. Storm water management and control.

d. Prevention of releases into the environment, land, air and water.

e. Waste Management, identification of types and estimated volumes of waste to be generated, procedures for documenting waste determination, management procedures for accumulation, labeling and disposition (when allowed by Code 106.3), management of used oil, etc;

(1) Contractors must have a waste minimization program in place per 40CFR262.27

f. Sampling Plan.

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(1) Duties and levels of authority assigned to personnel on the job site who will perform sampling, training and certifications.

(2) Waste to be sampled, laboratory accreditations and Environmental Protection Agency (EPA) test methods used for waste determination or disposal.

(3) Identification of environmental sampling activities and have a documented quality system meeting the requirements of ANSI or ASQ E4-2004 per OPNAVINST M-5090.1; Environmental Readiness Program.

(4) Per OPNAVINST M-5090.1, Laboratories must meet ISO or IEC 17025:2005, General Requirements for the Competence of Testing and Calibration Laboratories, demonstrate the ability to generate acceptable results from analysis of proficiency testing (PT) samples using each applicable method in the specified matrix, make available upon request by PHNSY&IMF results of all PT samples analyzed by the laboratory during the contract period of performance, and must be accredited for each test method per DoDI 4715.15 (latest) or by a nationally recognized laboratory accreditation body compliant with ISO or IEC 17011:2004, Conformity Assessment- General Requirements for Accreditation Bodies Accrediting Conformity Assessment Bodies.

g. Clean Air Act Compliance. Identification of portable and stationary internal combustion engines that will be supplied, used or serviced on site, comply with 40 CFR 60 Subpart IIII, 40 CFR 60 Subpart JJJJ, 40 CFR63 Subpart ZZZZ and local regulations. At a minimum, include make, model, serial number, manufacturer date, size (horsepower), and EPA emission certification status of each engine. Maintain records and log hours of operation and fuel use. Logs must include reasons for operation and delineate between emergency and non-emergency operation;

h. Abatement Plan (e.g., asbestos, lead)

i. Demolition Plan

j. Surveillance Plan

k. Best Management Practices Plan for sediment and erosion control, construction site run-off control, and/or construction work in/above water.

Note: Exceptions apply when no dust, debris, pollutant, or waste is generated and no potential exists for a release to the environment.

9. Work Area and Cleanliness. Contractors must maintain the work areas in the highest reasonable state of cleanliness consistent with the work performed. Every effort must be made to prevent pollutants from entering water (storm drains and the harbor), land and air. At a minimum, all trash, industrial waste, mechanical or grinding debris, etc. must be removed and properly disposed of at least once every shift or more frequently as required. No maintenance of Contractor-owned vehicle or equipment will be performed on PHNSY&IMF property. All materials, tanks, items, etc. used must be maintained under the control of the Contractor and removed in a timely manner, no later than upon completion of work. Do not abandon material, equipment or waste. If Contractor material is placed in an incorrect receptacle (e.g., recycling in an industrial waste bin), the Contractor will be required to segregate material from the receptacle and dispose of properly. Contractor shall not utilize Government containers.

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10. Inspections and Surveillances. Contractor must have a documented inspection/surveillance and oversight program.

a. Daily (minimum) inspections must be performed and documented and made available for Government COR and Code 106.3 review.

b. All non-compliances with Federal, State or local rules, regulations and statutes and non-compliances with the Contractor's plans/drawings, must be corrected immediately. The Contractor must document the corrective actions taken. If immediate actions cannot be taken, the Contractor must prepare a written plan of action and milestones (POAM) including due dates.

(1) Contractor must immediately notify the Government COR and Code 106.3 when Severity Level 1 and 2 events occur. Level 1 events are defined as problems or trends that could result, or have resulted, in significant impacts to the environment, including discharges to the environment. Level 2 events are defined as problems or trends that, if not found and corrected, could result in Level 1 problems. Level 1 and 2 events must be investigated to determine and correct the underlying causes. Contractor must submit the plan to correct underlying causes to the Government COR and Code 106.3 for review.

c. Code 106.3 will conduct periodic environmental inspections or surveillances of operations to validate Contractor's compliance. Contractor must provide Code 106.3 personnel access to all spaces, operations and records related to environmental compliance and a knowledgeable person to accompany Code 106.3 personnel.

d. Contractor may elect to inspect the work area prior to occupancy. Any pre-existing environmental discrepancies identified during the walk-through inspection prior to occupancy must be reported to the Government COR for corrective action and documentation. Prior to completion of work, Contractor must contact the Government COR to accompany Contractor on an inspection to resolve any environmental discrepancies (i.e., abandoned and unknown waste).

11. Hazardous Materials (HM). Contractor must address procedures including, proper handling, transportation, and storage requirements of HM in their Safety Plan and can bring onto Government property only HM that is needed for the performance of the Contract. EM must ensure that HM removed from the job site is HM and does not meet the definition of hazardous waste.

a. All HM must have Safety Data Sheets (SDS) readily available. HM containers must be kept closed when not in use and properly stored in appropriate hazardous material storage lockers. Contractors must provide hazardous material storage lockers. Secondary or transfer containers of HM must be properly labeled to identify the product name, hazard warning, and precautionary statements. No food containers may be used to store HM.

b. Emergency Planning and Community Right-to-Know Act (EPCRA) Sections 312 and 313 and 29 Code of Federal Regulations (CFR) 1910.1200. Contractors must provide Code 106.3 an inventory form listing of all HM brought into the command. At the end of each month, the "EPCRA Section 313 Hazardous Material Storage and Usage Worksheet" must be completed and turned in to Code 106.3.

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- c. National Emission Standards for Hazardous Air Pollutants (NESHAP), CFRPart 63, Subpart II Contractors must Provide certification to the Supervisor, utilizing an excel spreadsheet for Volatile Organic Compounds (VOC). The report is due no later than the 10th of each month, or at the end of each job, whichever is earlier.
- d. Information on controlled biological substances such as “Gamazyme” must be reviewed by Code 106.3 prior to bringing material into PHNSY&IMF.
- e. Lead and Chromate Paints. Paints containing lead or chromates greater than or equal to 0.06% by weight must not be used.
- f. Cadmium. Cadmium plated or coated material must not be used unless no technically acceptable substitute is available.
- g. Tributyl-tin. Paint or other material containing tributyl-tin must not be used. If material containing tributyl-tin is to be disturbed, the Government COR and Code 106.3 must be notified 12 weeks prior to starting work. The Contractor shall provide to Government and Code 106.3 the anticipated start and end date of the work and the proposed maintenance to be performed. The Contractor shall develop and provide to the Government and Code 106.3 a written plan (Tributyltin Plan) documenting how compliance with the prohibition of tributyl-tin discharge to harbor will be demonstrated, and how all associated wastewaters shall be disposed. The Tributyltin Plan may need to be submitted and approved by the State Department of Health.

12. Spill or Release Prevention and Reporting. Contractor must exercise due diligence to prevent, contain and respond to spills or releases of oil and hazardous substances, hazardous waste, sewage, etc. per State regulations.

a. The Contractor must notify Code 106, Regional Dispatch Center (RDC) and the Navy’s administrator of this Contract immediately (i.e., within 15 minutes of spill occurrence or discovery) regarding all spills of oil, hazardous substance, hazardous waste, fuel, sewage, gases or other chemicals. Spills include reportable quantity spills, per federal and Hawaii regulations, and non-reportable spills, including all spills into water or storm drains, or onto the ground, piers or drydock floors, of less than a reportable quantity and spills that could have reached water or drains if they had not been contained within secondary containment. To the maximum extent practicable, notification should include date and time spill occurred or was discovered, specific substance spilled, spill volume (total spilled and amount in water), operation underway when spill occurred, description of spill (e.g., size, color and movement of spill on land and water), specific response actions taken or planned (e.g. personnel safety, source id, source control, containment, cleanup, volume recovered, disposal). If not all information is readily available, spill notification should still be immediate, and additional information provided with a subsequent update. The Navy alone will determine whether to provide assistance.

b. For any reportable quantity spill or non-reportable quantity spill identified in paragraph 12.a. the Contractor must conduct an investigation into the cause or causes of the spill, including root causes (e.g., equipment failure or personnel error such as failure to follow procedures or inadequate written procedures, training, equipment maintenance or supervision). The investigation will identify corrective actions taken, or to be taken, that will prevent future similar spills at the same or other locations where similar work is planned or ongoing. The Contractor must submit a draft report of the findings and corrective actions taken to Code 106 within 3 working days of the

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spill. The Contractor must respond to any Code 106.3 follow-up requests for information related to the spill and must not finalize its report until Code 106.3 concurs with the findings and corrective actions.

c. Provide and maintain spill cleanup equipment and materials at the worksite. In event of spill or release, take prompt action to stop, contain, isolate or otherwise limit the amount, duration and severity of the spill or release.

d. Manlift and Forklift Equipment. An operator's daily checklist must be filled out prior to operation of equipment on a daily basis. Any identified leaks or deterioration of hoses must be noted and corrected prior to operation of equipment. At the end of shift, the manlift or forklift must be positioned or located away from nearby drains and parked over a drop cloth. Spill kits must be staged within line-of-sight of manlift and forklift operations.

e. Spill Prevention, Control, and Countermeasures (SPCC). Contractors who store more than 1,320 gallons of oil products while performing work at PHNSY&IMF must prepare, implement, maintain, and provide a copy of their SPCC plan to Code 106.3 for review. Contractors who store less than 1,320 gallons of oil products, but store, transfer, or use oil products (e.g., diesel, gasoline, kerosene, used oil, hydraulic oil, lubricants, oily wastewater, etc.) in containers or equipment with a capacity of 55 gallons or greater, must implement appropriate spill prevention, control and countermeasure Best Management Practices (BMPs) and post emergency contact information on oil and oily waste containers or their storage areas. Contractors must monitor and remove any rainwater that accumulates in open berms. Inspect accumulated rainwater prior to draining to the environment to determine no oil sheen present and document inspection. Cover containment or berms during inclement weather to prevent overflows and equipment that may produce oil sheen.

13. Clean Water

a. Dry Dock Controls. Contractors must comply with NPDES Permit No. HI 0110230 and NAVSHIPYD&IMFPEARLINST 5090.5 Dry Dock Pollution Control Plan. Authorized discharges (i.e., non-contact cooling water, A/C condensate, and rain water) to the harbor via the dry dock drainage system are strictly regulated per the effluent limitations, monitoring requirements and other conditions set forth by NPDES Permit No. HI 0110230. Written concurrence from Code 106.3 is required for all authorized discharges. All other water is prohibited from being discharged into dry dock drains, unless specifically authorized in writing by Code 106.3.

(1) Training. All service members, employees, contractors, sub-contractors or other personnel conducting maintenance activities within the dry docks must receive training specific to the requirements of the Dry Dock Water Pollution Control Plan prior to working within the dry docks and document when and where training was received. Training specific to the Dry Dock Water Pollution Control Plan must be renewed annually for individuals conducting maintenance activities at the facility. Contractors who are performing facility maintenance must attend a Contractor Environmental Brief given by Code 106.3 prior to the start of work and annually thereafter.

(2) Chemical solutions used for cleaning, flushing, or soaking operations must not be released to the dry dock floor or dry dock floor sumps. Fire retardant wood is required in the dry dock except when used in wet operations such as hydroblast containments.

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(3) The dry docks in their entirety must be kept sufficiently clean at all times to prevent solids and debris from being washed into the dry dock drainage system. The use of brooms or vacuum cleaners is the preferred method of maintaining cleanliness in the dry dock. Wash downs of work sites in the dry dock is prohibited.

(4) Fire hose or main testing water and sanitary wastes, including drinking fountains, must not be discharged into the dry dock drainage system or onto the dry dock floor. Sanitary wastes must be discharged to the sanitary sewer system with Code 106.3 approval.

(5) Solid wastes, including spent sandblast grit, scale, rust, zinc anodes, and other debris on the dry dock floor must be expeditiously collected and removed from the dry dock floor at the end of each shift to avoid contact with and contamination of rainwater run-off. Filter material such as Scotch Foam must be used to cover dry dock drain gratings to prevent solids from entering the dry dock drain system. The Scotch Foam (or similar material) must be routinely inspected and replaced when fouled.

(6) Water-tight containments, floor coverings, drop cloths, or other similar methods must be used to prevent discharges of pollutants to the dry dock drainage system.

(7) Portable latrines used in the dry docks must be placed in secondary containments to prevent leakage of sewage and cleaning or disinfecting solutions from entering the harbor via the dry dock drain system. Latrines must be secured and placed on flat surfaces for stability to prevent them from falling over. Every effort must be made to prevent spills during movement of latrines.

(8) Herbicides and pesticides (includes wood treated with pesticides) must not be used in the dry dock.

(9) Contractors are required to perform daily inspections of the dry dock at the “end-of-daylight” hours and within 15 minutes of a rain event (when industrial work is being performed). This is a requirement of NPDES Permit No. HI 0110230 and NAVSHIPYD&IMFPEARLINST 5090.5 Dry Dock Pollution Control Plan. Contact the Government COR or knowledgeable Code 106.3 personnel for inspection requirements. All inspections must be documented and submitted to Code 106.3 by the 7th day of the following month. For example, records for inspections performed in August are due to Code 106.3 by September 7. It is not necessary to perform a daily inspection if no industrial work occurs, but written records must explicitly indicate “No Industrial Work” for that specific date and must also include a POC.

b. Storm Water Controls. PHNSY&IMF has Storm Water Permits HI R20A427 and HI 06KC635 which apply to all work being performed at PHNSY&IMF, including dock side and in adjacent laydown and work areas.

(1) BMPs must be implemented to prevent pollutants such as but not limited to solid waste, trash, industrial debris, rust, anodes, blasting media, etc. from entering the storm drain system and the harbor. Examples such as covering storm drain openings, placing of filter material in or around drains that may be affected or placing filtering materials in or around the work site may be used. Pollutants must be removed to prevent contamination of rainwater runoff or entrance into the storm drain system. Debris containing pollutants (e.g., lead, chromate, paint, etc.) must be properly disposed of per environmental disposal requirements.

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(2) Non-storm water discharges are prohibited from entering the storm water system. Measures must be taken to ensure nothing is discharged directly onto the ground or piers, into the storm drains or into the harbor. Any generated wastewater must be collected and properly disposed.

(3) Keep dust down at all times, including nonworking hours. Dust control from construction work must be sufficiently maintained and excavated material covered to protect from wind and rain at the end of the workday, or be removed from the site immediately to prevent material from entering the storm drains. Soil or similar materials must be covered at the end of the work day or sooner depending on the weather, placed in an appropriate site away from the waterfront, or stored in a manner that will prevent sediment from being washed or blown into the storm drains (e.g., using protective barriers). Sprinkling the ground surface with water until it is moist or erecting wind break barriers are effective dust control methods.

(4) Storage of Materials. Materials must be stored in a manner that will not contribute pollutants to storm water runoff. If necessary, stored materials that are exposed to the elements must be covered with non-permeable material. Keep moveable metal items more than 5 feet from storm drains. Unpainted metal equipment and metal ship spare parts must be covered with non-permeable coverings. Industrial waste, hazardous materials and hazardous waste must be stored properly to prevent spills or releases into the environment.

(5) Portable latrines staged throughout PHNSY&IMF must be placed in secondary containments to prevent leakage of sewage and cleaning or disinfecting solutions from entering the harbor via the storm drain system. Latrines must be secured and placed on flat surfaces for stability to prevent them from falling over. Latrines must be situated no less than five (5) feet from storm drains. Every effort must be made to prevent spills during movement of latrines.

(6) Contractor must obtain a construction stormwater permit if disturbing more than one (1) acrea of land.

c. Industrial Wastewater. All wastewaters generated from work processes at PHNSY&IMF are considered industrial wastewater. All waste streams not subject to a specific exclusion or exemption from the regulations must be accurately characterized per the requirements in the Hawaii Administrative Rules Title 11 and local regulations. All waste must have a documented waste determination made prior to generation. The Contractor shall perform sampling and laboratory analysis per their sampling plan after notifying the Government Contracting Officer or COR and PHNS&IMF (Code 106.3).

(1) Industrial wastewater must be collected, sampled and properly disposed per contract agreement. Any industrial wastewater generated that does not have specific disposition requirements per contract agreement must be sampled to determine if it meets NAVFAC Hawaii Wastewater Treatment Plant sewer discharge limits or NAVFAC Hawaii pre-treatment acceptability criteria. Additional sampling requirements may be required if disposing of industrial wastewater via dry dock sewer connections or in the vicinity of the dry docks. Industrial wastewater that meets NAVFAC Hawaii sewer discharge limits or pre-treatment criteria may be disposed via the Government COR. Industrial wastewater that does not meet sewer discharge limits and cannot be pre-treated must be sent for off-site disposal, including resulting sludge, per the contract agreement.

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(2) Wastewater Transfer. Contractor must ensure that all wastewater transfer operations do not result in a spill. Positive connection of hoses at collection tank must be verified and a tank watch must be provided during pumping operations. Positive connection must be verified prior to each use. Means of communication is required between source and destination of transfer or pumping operations. Collection tanks must be continuously monitored to ensure overfills and spills are prevented. Precautions must be taken to prevent spillage of residual liquid in the hoses when disconnecting or removing hoses, and hose ends must be capped when not in active use. Contingency spill kit and secondary means of spill containment (110% of tank capacity or double-walled) for oil, oily water or bilge water tank(s) must be employed at all times when tank is in service.

(3) Bulk Collection Tanks. Contractor's tanks (collection system or tank truck) must be clean and free of oily or chemical residue (visual cleanliness criteria). Tanks must be labeled with name of project, contents, generator (the POC) and phone number.

d. Sanitary Sewer System Controls. Sanitary waste must be discharged into the sanitary sewer system. Handwashing for personnel must be performed in a facility connected to the sanitary sewer system, such as an approved sink, per NAVFAC Hawaii sewer system requirements.

e. Never discharge industrial wastewater to storm drains, dry dock drains, or Pearl Harbor with the exception of those allowed in NPDES Permits HI 0110230 and HI R20A427,

f. Do no commingle waste streams. If Contractor commingles waste streams, the Contractor must treat and dispose of the waste at their expense.

g. Cross-Connection and Backflow Prevention. Contractors must request PHNSY&IMF Shop 99 services via the Government COR when connection is required to any dockside or pier side potable water system. Only Shop 99 is authorized to make connections for Contractors under the cross-connection control and backflow prevention program.

14. Hydroblasting or Sandblasting Operations. Hydroblast water and sandblast grit generated must be collected, sampled and disposed of accordingly. Hydroblast water containments must be implemented to contain all hydroblast water generated from the process to prevent runoff from entering the dry dock drains, storm drains or harbor. Sandblast containment methods must be employed to prevent any fugitive dust from becoming airborne or entering the dry dock drains, storm drains or harbor. The COR and Code 106.3 must be notified of Contractor's plan to establish a containment; to conduct an inspection of the containment prior to the start of the hydroblasting or sandblasting work; and prior to the disestablishment of the containment. If multiple containments will be established, each containment must be inspected by Code 106.3 prior to use and prior to disestablishment. See Section 13.c. for information on disposing of hydroblast wastewater. See Section 19 for information on disposing spent grit.

15. Construction and Demolition (C&D). Federal Green Construction Guide for Specifiers, Section 01 74 19 (Section 01351) require all facility construction and demolition to include a Waste Management Plan. The disposal and recycling of C&D debris is the responsibility of the Contractor. Submit a completed Summary of Solid Waste Disposal and Diversion form to the Government COR and Code 106.3 within 15 calendar days upon completion of the project, or within 15 calendar days after the end of the fiscal year (30 September) for projects not completed by the end of the fiscal year.

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16. Construction Site Runoff Control. When construction type work is accomplished at PHNSY&IMF, best management practices must be observed.

- a. Groundwater from active construction site excavations can be pumped into another hole that is dug for the purpose of collecting the water or can be collected and removed and treated off site. Groundwater from these active excavations must not be pumped into storm drains or directly to the harbor.
- b. Debris from demolition work at PHNSY&IMF must be removed from the site or covered sufficiently to protect it from wind and rain at the end of the workday. Debris should be removed in a timely manner. Daily inspections must be performed and documented and must be available for Government review.
- c. Soil excavated from sites at PHNSY&IMF must be covered at the end of the workday or relocated to an appropriate site away from the waterfront and storm drains. All excavated soil must have sheets of plastic under and over the pile to prevent exposure to rainwater and possible runoff. If plastic sheeting cannot be placed under the pile, a silt fence must be installed around the perimeter of the pile and sheeting placed over the pile. Measures taken to prevent soil from entering the storm drain system may include covering the storm drains, placing filtering materials in or around the drains which may be affected by the construction work, or placing filtering materials around the work site itself. If necessary, containment methods must be employed to prevent release of dust or debris outside of the designated abatement control barriers or boundaries. After the construction or repair work is completed, the work site must be swept so that sediment from the work will not enter the drains during rain. Reasonable precautions must be taken to prevent uncontrolled dust during excavation operations. Anyone performing construction or repair work in the dry docks must also follow the requirements described for dry-dock work per NAVSHIPYD&IMFPEARLINST 5090.5.
- d. During construction or repair work, filter media or filter fences must be installed around all affected storm drain inlets to keep solids from entering the storm drains while allowing the storm water to enter. The protected storm drains must be maintained properly throughout the construction or repair work.
- e. Erosion Control. Areas in PHNSY&IMF that may be subject to erosion are located near Marine Railway No. 2, Building 1274, Landing C, the area in back of Building 327, and the Old Sandpit area.
- f. Excess Soil. Contractor shall follow Joint Base Pearl Harbor-Hickam (JBPHH) Standard Operating Procedure for Management of Excess Soil.
- g. Daily (minimum) inspections must be conducted by Contractors of their worksite(s) including any laydown area(s) to ensure cleanliness, and that adequate environmental controls are in place and any soil and debris are properly covered. The covering must be adequate to prevent run-off or deterioration, etc. Contractor must provide documentation of these inspections and immediately correct any discrepancies identified. Documentation must be available for Code 106.3 for review.

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h. If petroleum contaminated soil or suspected hazardous waste is found during the project that was not identified in the Contract, immediately notify the Government Contracting Officer or COR and PHNSY&IMF (Code 106.3). Do not disturb this material.

17. Construction Work in and above Water. Implementation of a Best Management Practice (BMP) Plan is required and must be submitted to, and approved by, Code 106.3 prior to the start of work. The BMP Plan must address the use of dust and debris containment and catchment devices to prevent foreign matter from entering the harbor and protection of marine mammals and endangered species, including prevention of introducing invasive species. The BMP Plan must include, but not be limited to, the BMPs listed in this paragraph.

a. Contractors must use full water depth silt curtains to enclose the work area to control turbidity during all in-water work. In-water work must include probing and removal of obstructions. If a plume is observed outside of the silt curtains and is caused by the construction activity, the Contractor must stop the activity and take corrective action immediately. Work may resume after approval from Code 106.3 after corrections have been made.

b. Debris must not be allowed to enter the water. A temporary platform or other suitable positive means of capturing debris from demolition operations must be established. These containments must be in place and approved by the COR before starting demolition work.

c. Fresh concrete must not be dispersed through the water. Marine concrete or cementitious grout must be placed by pumping into forms.

18. Clean Air

a. Painting Operations. For spray-painting operations, reasonable containment methods (e.g., screen containment) must be employed to prevent uncontrolled release of overspray. Contact Code 106.3 for guidance when conducting spray painting operations in dry dock areas which are higher than 10 feet below the pier side of the dry dock. Employing over-spray containments are not required if the method of applying paint coatings is by brush or roller. A drop cloth is required below the area that is being painted whether applying by brush or roller, including protection of keel blocks. Air drying of brushes, rollers, rags and containers is strictly prohibited. Containers must be kept closed when not in use. There must be no air drying of brushes, rollers, rags and containers. Contractors must ensure container integrity is satisfactory to prevent leaks. Paints and other coatings for General Use will not have a VOC concentration greater than 340 grams per liter (g/L) coating (minus water and exempt compounds). The VOC concentration of paints and other coatings will be documented in a VOC batch certification from the supplier – a copy to be provided to Code 106.3. No thinning of paints or coatings is allowed.

b. Class I and II Ozone Depleting Substances (ODS) are Government property and must be returned to the Government for appropriate management. ODS work must be done per 40 CFR 82 which requires that the technicians be certified, no willful discharge of ODS to the atmosphere and EPA certified equipment is used to recover the ODS. OPNAV M-5090.1 requires that all Class I and II ODS be recovered and turned into the ODS Reserve and no Navy activity will sell or otherwise transfer any Class I or Class II refrigerants.

c. All usable Heating, Ventilation, Air Conditioning and Refrigeration (HVAC&R) equipment, (e.g., air conditioners, air compressors, and dehumidifiers), removed by a Contractor

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that contains or potentially contains ODS must have a warning label or marker affixed to the equipment with the statement: "WARNING: CONTAINS (ODS CHEMICAL NAME) A SUBSTANCE WHICH HARMS PUBLIC HEALTH AND THE ENVIRONMENT BY DESTROYING OZONE IN THE UPPER ATMOSPHERE."

d. Examples of ODS chemical names are Chlorodifluoromethane (R-22), Dichlorotetrafluoroethane (R-114), etc.

e. Accidental release of a refrigerant is a release and must be reported immediately to the COR and to the RDC, 911. An Accidental or Unintentional Venting Report form must be submitted to the Government Contracting Officer or COR and PHNSY&IMF (Code 106.3)

19. Notification of Demolition and Renovation Form (40 CFR 61, Subpart M). In accordance with EPA NESHAPS 40CFR 61 (m), State of Hawaii Department of Health (DOH) HAR CH. 11-501, and NAVYSHIP&IMFPEARLINST 5100.1a 401G, written notification must be submitted to and approved by the local EPA agency (State of Hawaii Department of Health Radiological Health Branch) prior to any renovation or demolition activity being performed regardless if asbestos containing material (ACM) is identified as being present. Upon completion of DOH review and approval, a copy shall be submitted to the Government Contracting Officer or COR and PHNSY&IMF (Code 106.1) for review prior to any work commencing.

20. Waste Management and Disposal. All waste streams not subject to a specific exclusion or exemption from the regulations must be accurately characterized per the requirements in the HAR Title 11 and local regulations. All waste must have a documented waste determination made prior to generation. The Contractor shall perform sampling and laboratory analysis per their sampling plan after notifying the Government COR and Code 106.3.

a. Hazardous Waste (HW). HW generated by Contractor must be turned in to the PHNSY&IMF Hazardous Waste Facility (HWF) (Building 1663), **with the exception of C&D, soil and/or excavated material**, accompanied with a completed Custody Transfer Form (CTF), profile and characterization sheet and SDS. The prime contractor is responsible to turn in the waste and to ensure proper characterization. Subcontractors shall coordinate disposal through the prime contractor. The CTF must be reviewed and co-signed by the Prime's designated EM for the Contract. The HWF hours of operation are Monday – Friday 0700-1400.

(1) Contractor is responsible for the proper waste determination and waste management from the point of generation until accepted at the HWF.

(2) HW must be properly packaged using Department of Transportation (DOT)-approved containers and labeled to identify its contents prior to turn in to the HWF. Contractor will be responsible for providing DOT containers compatible with the waste generated.

(3) Waste must be properly segregated. Waste must not be combined or consolidated with waste generated from different processes.

(4) HW must be turned in daily to the HWF. If HW is not turned in to the HWF daily, a Hazardous Waste Satellite Accumulation Area (HWSAA) permit to store hazardous waste at or near the point of generation must be requested in advance (3 working days minimum). HWSAA management, establishment, and disestablishment is the responsibility of the prime contractor.

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(5) Contractors hired by agencies other than NAVFAC are not allowed to remove HW from PHNSY&IMF without the authorization of Code 106.3.

(6) If waste turned in to the HWF as HW is later determined to be Non RCRA, the prime contractor must pick up the waste and properly dispose.

b. Non-Regulated Waste. Contractor is responsible for disposal of Non-regulated (aka Non-RCRA) waste streams per Federal, State, and local laws, and regulations, unless otherwise directed by the COR and Code 106.3.

(1) Prime Contractor generating the waste is responsible for obtaining and signing all waste disposal permits, landfill waste profiles, and Non-RCRA manifests or various transportation documents. Accuracy of the documents is the Contractor's responsibility. Code 106.3 shall sign landfill document as the landowner.

(2) All Non-RCRA waste related documents must be submitted to the COR and Code 106.3 at least three (3) working days before removal of the waste from PHNSY&IMF worksite. The documents include but are not limited to: details of the waste, disposal process and requirements, written waste determination, sample analysis (if applicable), SDS, waste disposal permits, landfill waste profiles, and signed Non-RCRA manifests and various transportation documents. The Contractor shall submit transportation documents signed by the disposal facility to the COR and PHNSY&IMF Code 106.3 within three (3) working days of receiving the document.

c. Fluorescent Tubes (FT). Fluorescent bulbs must be removed and disposed of prior to removal of the light ballasts from the fixtures. Fluorescent lights contain small amounts of mercury that may be released when the bulbs are damaged. As such, they need to be removed and handled carefully to avoid breakage. The bulbs must be turned in to the HWF via the Contractor CTF. FT must be packaged in strong sturdy boxes and packaged to avoid breakage.

d. Asbestos Waste. For asbestos removal performed by a Contractor, responsibility for waste disposal will depend on the volume of waste.

(1) Large Quantity Asbestos Waste

(a) Contractor provides own dumpsters;

(b) Asbestos waste must be packaged in the proper packaging to contain the asbestos (e.g., clear, double bag, goose-necked, proper labeling), being careful not to puncture the packaging as the landfill will reject any loads with punctured packaging;

(c) The Contractor must keep an accurate bag count of the different type of asbestos packaged, providing an accurate description of the asbestos waste and identifying if the waste is friable or non-friable;

(2) Small Quantity Asbestos Waste. For small amounts of asbestos waste (i.e., **not more than one pallet load for the entire job**) contact Code 106.3 at 473-8000 ext. 4580. The Contractor will be responsible for transporting the asbestos waste to the HWF and completing the required turn-in forms.

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- e. Excess Soil. Contractor shall follow Joint Base Pearl Harbor-Hickam (JBPHH) Standard Operating Procedure for Management of Excess Soil.
- f. Contractor must have a waste minimization program in place IAW 40CFR262.27.
- g. Trash bins must be covered with a lid and be leak proof to prevent spills or releases into the environment.
- h. Do not abandon any waste. If abandoned waste is identified to belong to the Contractor, the Contractor shall return to the site and properly dispose of the waste at their expense.

21. Polychlorinated Biphenyls (PCBs)

a. PCB waste from facilities. Facilities built or renovated before 1 January 1980 may contain materials with PCBs in concentrations greater than or equal to 50 ppm. Materials must be characterized as PCB free, PCB contaminated, PCB or suspect (sampling is required) prior to removal.

(1) Electrical Equipment:

- (a) Transformers.
- (b) Capacitors.
- (c) Hydraulic systems.
- (d) Electrical cable.
- (e) Fluorescent light ballasts.

(2) Building materials:

- (a) Coatings, sealants, paints.
- (b) Insulation material (fiberglass, felt, foam, rubber and cork).
- (b) Roofing and siding materials.
- (c) Gaskets in HVAC systems.
- (e) Adhesives, mastic, caulking, grout.

b. For requirements regarding marking, storage, packaging and transportation to HWF of PCBs, contact Code 106.3 at 473-8000 ext. 4580. For work on transformers, contact NAVFAC Electrical Shop.

22. Recyclables.

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a. **Fluorescent Lamp Starters.** If the starter is affixed to the metal light fixture, the fixture must be managed as recyclable metal and turned in to the Navy Recycle Center at Building 159. The fluorescent lamps and PCB ballast must be removed from the fixture and turned in to the HWF. If the starter is removed from the fixture, place the starter into a zip lock bag and mark and label the zip lock “Recyclable metal (starter)” and turn in to the Navy Recycle Center located at Building 159. The Navy Recycle Center can be contacted at 474-3717/471-0967. The metal light fixture with the starter or the starter itself must not be disposed of as general industrial trash.

b. **Zinc and Aluminum Anodes or Lead Ballast.** To minimize release of zinc, aluminum and lead to the environment:

(1) During handling of used anodes and ballast, use a drop cloth to contain debris and flakes that might break off and fall to the floor. This drop cloth is in addition to any containment that may exist. Remove all debris and flakes from the area upon completion of work and turn in to the HWF with the Contractor CTF per NAVSHIPYD&IMFPEARLINST 5090.1.

(2) Stage and store “new” anodes or ballasts in a manner that prevents ground contamination and also to prevent exposure to rainwater and the environment. When not in use, new anodes and ballast should be covered at all times. Minimize staging time on the dock floor and at pier side.

(3) Used anodes must be totally contained and protected from the environment. Methods include but not limited to putting anodes in closed containers or wooden boxes with covers. The intent is to contain all oxidized particles during collection, staging and transport of used anodes. Place different anode or ballast types in separate containers and clearly identify each container.

(4) Disposal Method. Used anodes and lead ballasts are recyclable and must be turned in to the Navy Recycle Center at Building 159, 474-3717/471-0967.

c. **Recycling Program.** Recyclable scrap metal and corrugated cardboard must be turned into the Navy Recycle Center at Building 159, 474-3717/471-0967.

23. **Smoke Detectors and Tritium Signs.** Turn in smoke detectors and tritium signs to PHNSY&IMF Radiation Health Division, Code 105.5, via the COR. Contact 473-8000 ext. 3889 or ext. 3822 for packaging, labeling and disposal requirements. Contractors must not dispose of ionization smoke detectors and tritium signs to the HWF.

24. **Gas Cylinders.** All gas cylinders used must be removed from the project site when work is completed.

25. **General Refuse Sent to H-POWER.** Contractor must not send HM, HW, empty HM or HW containers, compressed gas cylinders, propane tanks, ordnance, or munitions to the Honolulu Program of Waste and Energy Recovery (H-POWER) plant for disposal. Contractors must not use government trash or refuse containers unless authorized by Contract or COR.

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